

25STCV33912 25STCV33912

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Case Number: 25STCV33912 Hearing Date: August 31, 2026 Dept: 400

MOTION FOR

PROTECTIVE ORDER

The Court tenders the following

tentative decision in the matter Jesus Flores v. Eugene la Pietra, Los

Angeles County Superior Court case number 25STCV33912, set for hearing on

August 31, 2026. Jesus Flores (Plaintiff) moves for an order requiring Eugene

la Pietra (Defendant) to provide certain information and preventing the

transfer or use of certain property. Defendant has not filed an opposition. The motion is denied without prejudice.

A.

Legal Standard

"A trial court

may grant

a preliminary

injunction upon a showing that (1) the party

seeking the injunction

is likely

to prevail on the merits at trial, and (2) the 'interim

harm' to that party if an injunction is denied

is greater

than 'the [interim] harm the [opposing

party] is

likely to suffer

if the . . . injunction is issued.'" (Integrated Dynamic Solutions, Inc. v.

VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183; Code Civ. Proc., § 526,

subd. (a).)

Preliminary injunctions may only be granted after the moving party shows there is no adequate remedy at law. (*Wilkison v. Wiederkehr* (2002) 101 Cal.App.4th 822, 832.) A showing of irreparable harm is a “threshold requirement” to obtain a preliminary injunction. (*Costa Mesa City Employees Assn. v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 306.) To show irreparable harm, the moving party must ordinarily show that his injuries cannot be adequately compensated by damages. (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352.)

Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See, e.g., *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150.) Injunctive relief may be granted based on a verified complaint only if it contains sufficient evidentiary, not ultimate, facts. (See Code Civ. Proc. § 527, subd. (a).) The burden of proof is on the plaintiff as moving party. (*O’Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

A trial court has broad discretionary powers to grant or deny a request for a preliminary injunction, so long as it does not act capriciously. The court should exercise its judgment in favor of the party most likely to be injured. (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.) If denial of an injunction would result in great harm to plaintiff, and defendant would suffer little harm if it were granted, it is an abuse of discretion to fail to grant the preliminary injunction. (*Ibid.*)

B. Discussion

As a threshold matter, the Court finds that Plaintiff has not provided sufficient notice to Defendant regarding the substance of the present motion. Plaintiff moves for Defendant to provide an accounting of Plaintiff’s alleged property and for a protective order preventing its further use or transfer. However, Plaintiff does not provide a statutory basis for this “accounting.” It appears that Plaintiff seeks answers to certain interrogatories, and to that end Plaintiff is entitled to propound interrogatories on Defendant. But the statutory basis for the present motion is unclear.

Additionally, the notice of motion claims that Plaintiff seeks a protective order regarding the use of his property. Protective orders are sought to avoid responding to discovery demands. (See Code Civ. Proc., § 2031.060.) They do not involve imposing limitations on another individual's use of property. The relief sought by Plaintiff would only be obtained through a preliminary injunction. Indeed, Plaintiff references the preliminary injunction statute, Code of Civil Procedure section 526, later in the motion. But nowhere in Plaintiff's notice of motion does he mention any preliminary injunction.

The Court finds the notice defective. Injunctive relief carries great weight, and it would be improper to entertain such a drastic remedy when Plaintiff has not afforded Defendant proper notice of the relief sought. The information sought is more appropriately requested in discovery. Accordingly, the Court denies Plaintiff's motion without prejudice. Plaintiff may serve discovery or file a motion for a preliminary injunction, following the necessary procedures outlined in Code of Civil Procedure sections 526, et seq.

C. Conclusion

The Court denies the motion without prejudice.